



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 16 judgments on Tuesday 17 July 2018 and 41 judgments and / or decisions on Thursday 19 July 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 17 July 2018

Ronald Vermeulen v. Belgium (application no. 5475/06)

The applicant, Ronald Vermeulen, was born in 1951 and lives in Sas van Gent (the Netherlands). He was a Belgian national at the relevant time and obtained Dutch nationality during the proceedings.

The case concerns administrative proceedings in which Mr Vermeulen appealed against his result in the competitive examination for admission to the civil service.

In June 2000 Mr Vermeulen was informed by the Permanent Secretariat for the Recruitment of Civil Servants that he had not passed the examination for the recruitment of "administrative officials of the fourth class in the cabinet office", having failed the oral part.

He lodged an initial appeal with the *Conseil d'État* (the highest administrative court), which annulled the decision, finding that it lacked reasoning. Mr Vermeulen was asked to retake the oral part but he again failed. In January 2002 he thus lodged a second appeal with the *Conseil d'État*, complaining about a lack of reasoning in the decision and a lack of impartiality on the part of the examiners. In August 2005 his appeal was declared inadmissible on the ground that he no longer had standing within the meaning of section 19(1) of the Laws on the *Conseil d'État*, as he had only requested the annulment of his own result. He had not challenged the marks of the successful candidates, the reserve list itself, or the ensuing appointments, nor had he submitted any other grounds to justify the annulment of the competition as a whole.

Relying on Article 6 § 1 (right of access to a court) of the European Convention on Human Rights, Mr Vermeulen complains about the outcome of his second appeal and, in particular, about the interpretation of the rule on standing before the *Conseil d'État*.

SA Patronale hypothécaire v. Belgium (no. 14139/09)

The applicant company, SA Patronale Hypothécaire, is a legal entity under Belgian law with its registered office in Brussels.

The case concerns the denial of the company's application for authorisation to pursue its capital investment activity.

SA Patronale Hypothécaire granted mortgage loans and had a capital investment activity. In 1993 legislation to abolish the status of capital investment companies entered into force. The implementing order provided that only lending institutions and insurance companies which had the requisite authorisation would be able to pursue capital investment activity from 1 January 2008. In May 2007 SA Patronale Hypothécaire applied for authorisation as a lending institution but its application was denied by the Commission for Banking, Finance and Insurance, which found in particular that three individuals given as serving directors had been disqualified from executive positions in the finance sector. The applicant company appealed to the *Conseil d'État* (the highest

administrative court), asking it, in particular, to give a ruling that it was entitled to act as a financial institution and that its directors were not barred by any professional disqualification.

The *Conseil d'État* denied the company's appeal, finding in particular that it was not entitled to give a ruling as to the rights and obligations of the parties involved or to order the respondent to take certain measures in order to implement the judgment. It also stated that it only had jurisdiction to annul individual administrative acts in the event of illegality and that claims going beyond the annulment of the disputed decisions did not fall within its jurisdiction.

Relying on Article 6 § 1 (right of access to a court) and Article 13 (right to an effective remedy) of the Convention, the applicant company complains that it did not have its case heard by a court with full jurisdiction and that there was no effective remedy.

[Egill Einarsson \(no. 2\) v. Iceland \(no. 31221/15\)](#)

The case concerns a complaint by an Icelandic national, Egill Einarsson, about rulings of the domestic courts denying his damage claims and his claim for the payment of his legal costs in defamation proceedings.

Mr Einarsson, born in 1980, was a well-known writer of blogs, articles and books, who had also appeared on television. Certain of his published views attracted attention and controversy, including his views about women and their sexual freedom.

He was accused of rape in 2011 and in early 2012 of having committed another sexual offence a few years earlier. Prosecutors later dismissed the cases for lack of evidence. In November 2012, Mr Einarsson gave an interview to a local magazine, which included his picture on the front page and his comments on the rape accusation. He stated several times that the accusations were false.

On the same day as the interview, a Facebook page was set up to protest about the interview and to encourage the editor to remove Mr Einarsson's picture from the magazine's front page. Later that day, X posted a comment on the page stating that: "This is also not an attack on a man for saying something wrong, but for raping a teenage girl ... It is permissible to criticise the fact that rapists appear on the cover of publications which are distributed all over town...".

In December 2012 Mr Einarsson lodged defamation proceedings before the District Court of Reykjavik, requesting that X be punished under the Penal Code for publishing the statements in question, that the statements be declared null and void and that X carry the cost of publishing the main content of the judgment in a newspaper and pay his legal costs.

In its judgment the District Court declared the statements made by X null and void. However, it did not make an award to Mr Einarsson in respect of non-pecuniary damage or order X to bear the cost of publishing the judgment in a newspaper. It also held that each party should bear their own legal costs. In December 2014 the majority (two out of three judges) of the Supreme Court upheld the District Court's judgment.

Relying on Article 8 (right to respect for private and family life), Mr Einarsson alleges that the domestic courts' conclusions meant that anyone could call him a rapist in speech or in writing without him being able to defend himself. He further alleges that he did not have an effective remedy to protect his rights without suffering considerable financial loss.

[Abdilla v. Malta \(no. 36199/15\)](#)

[Ruiz Pena and Perez Oberght v. Malta \(nos. 25218/15 and 25251/15\)](#)

Both cases concern complaints about conditions of detention in the Corradino Correctional Facility.

The applicant in the first case is Jean Pierre Abdilla. He is a Maltese national who was born in 1975. The applicants in the second case are Gerardo Jose Ruiz Pena, a national of Venezuela, and Richard

Andrews Perez Oberght, from the Dominican Republic. They were born in 1964 and 1973 respectively.

The applicant in the first case is serving a 16-year sentence for drugs offences, which was imposed in 2009. He has mostly been held since December 2009 in Division 2 of the Corradino prison. He complains about the dilapidated state of the area of the prison where he is detained, which dates back about 200 years, including a lack of light and air, and about his cells. He states in particular that the cells are stuffy in the summer or cold in the winter and that access to running water is limited. Complaints have been made about the conditions at the prison, including constitutional actions by inmates, but they have not led to any change.

The applicants in the second case are also being held in the Corradino Correctional Facility, in Division 3. Mr Pena is serving a 10-year sentence while Mr Oberght was jailed in 2009 for nine years. Both men make a series of complaints about their conditions of detention. In particular, Mr Pena complains that his cell only has one window, which is high up, and one air vent, which is clogged with dirt and debris. The cell is hot in the summer and cold in the winter because of a lack of ventilation and he has to use a bucket to flush the toilet. Mr Oberght also complains of a lack of light in his cell, a lack of drinking water and of the presence of dust which affects his asthma.

Mr Abdilla complains about the conditions of his detention under Article 3 (prohibition of inhuman or degrading treatment) and under Article 13 (right to an effective remedy) in conjunction with Article 3. Mr Pena and Mr Oberght complain solely under Article 3.

[Mangir and Others v. the Republic of Moldova and Russia \(no. 50157/06\)](#)

The applicants, Stefan Mangir, Vitalie Vasiliev, Igor Daţco, Constantin Condrea and Alexandru Pohila, are Moldovan nationals who were born in 1967, 1978, 1976, 1979, and 1964 respectively. Mr Mangir and Mr Vasiliev live in Chişinău and Cauşeni while Mr Daţco, Mr Condrea, and Mr Pohila live in Bender (all in the Republic of Moldova).

The applicants are all Moldovan police officers and the case concerns their complaints of unlawful detention and ill-treatment in the self-proclaimed “Moldovan Republic of Transdniestria” (“MRT”).

Officers Mangir, Vasiliev and Condrea were carrying out a criminal investigation in Tiraspol in the “MRT” in June 2006 when they were arrested by “the MRT secret service”. Officers Daţco and Pohila were also arrested when they went to Tiraspol to find out what had happened to their colleagues. The men were eventually released later in June but Officer Mangir was allegedly beaten up and injected with an unknown substance while in detention.

The applicants were accused in the “MRT” media of being members of “black squadrons” whose aim was to kidnap politicians and other people who were an annoyance to the Moldovan authorities.

The men complain about their arrest and detention under Article 5 §§ 1 (c), 3 and 4 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial / right to have lawfulness of detention decided speedily by a court). Relying on Article 3 (prohibition of inhuman or degrading treatment), they complain about their conditions of detention, such as a lack of natural light and overcrowding, and that they were not given the requisite medical assistance. They also raise a complaint under Article 13 (right to an effective remedy) taken in conjunction with Article 3 and Article 5.

[Sandu and Others v. the Republic of Moldova and Russia \(nos. 21034/05, 41569/04, 41573/04, 41574/04, 7105/06, 9713/06, 18327/06, and 38649/06\)](#)

The applicants in this case are 1,646 Moldovan individuals and three companies.

The case concerns the applicants’ complaint that they have been denied access to their land, which is located in the separatist region of the “Moldovan Republic of Transdniestria” (“MRT”).

The individual applicants privatised their land in the 1990s and were able for a time to enjoy access to it by crossing a road which was the de facto “border” between Moldova and the “MRT”. “The MRT” authorities set up “border” checkpoints on the road in 1998, forcing the applicants to pay various taxes and fees. In 2004 the “MRT” declared itself the owner of the land. It demanded the signing of rental contracts, which the applicants, as the rightful owners, refused. They thus lost access to the land, with their complaints to the “MRT” authorities being to no avail. They asked the Moldovan authorities, the Russian Embassy in Moldova and the Organisation for Security and Cooperation in Europe (OSCE) to intervene, also unsuccessfully.

The three applicant companies rented land from villagers in the area in question. After the “MRT’s” decision they lost access to the land or suffered the seizure of agricultural equipment and produce under decisions by “the MRT customs authorities”.

The applicants all complain about the loss of access to their land under Article 1 of Protocol No. 1 (protection of property) and of the lack of a legal remedy for that situation under Article 13 (right to an effective remedy) taken in conjunction with Article 1 of Protocol No. 1.

[Petrović and Others v. Montenegro \(no. 18116/15\)](#)

The applicants, Božidar Petrović, Alma Kuzmanović, Kristina Petrović and Željko Petrović, are Montenegrin nationals who were born in 1956, 1952, 1975, and 1980 respectively. Božidar Petrović lives in Tivat and Alma Kuzmanović, Kristina Petrović, and Željko Petrović live in Kotor (both in Montenegro).

The case concerns their complaint that coastal land they should have inherited was effectively expropriated without compensation.

In 2009 the applicants instituted civil proceedings against the State over two plots of land situated on the coast belonging to their father. They requested that they be recognised as owners of the land seeing as their father had not been registered as the owner of the land when he had died in 1997 and the land had been assigned to the State.

The courts, although accepting that the land had been owned by their predecessor, dismissed their claim because the land was in the coastal zone and, under the relevant domestic laws, could not be privately owned. All their appeals were unsuccessful. In particular, in 2015, the Supreme Court upheld the lower courts’ decisions, clarifying that it was possible in exceptional cases to privately own land in the coastal zone under the Property Act 2009, but only if the property right had been granted after entry into force of that Act, which was not the applicants’ case.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants complain that the State effectively expropriated their land and that they were not paid any compensation. Further relying on Article 6 § 1 (right to a fair hearing), they allege that the courts’ decisions rejecting their claim were arbitrary. In particular, they complain that the courts did not examine their argument that it was not true that coastal land could not be privately owned, citing numerous other plots of land in the coastal zone which were private property, including a plot of land they owned which was adjacent to the one at issue in the domestic proceedings.

[Fefilov v. Russia \(no. 6587/07\)](#)

The applicant, Sergey Fefilov, is a Russian national who was born in 1979 and before his conviction lived in Izhevsk (Russia).

The case concerns conditions of detention in a penal institution and the fairness of criminal proceedings.

Mr Fefilov was arrested in March 2005 and taken to a police station, where he was allegedly beaten and coerced into confessing to having committed the murder of a law-enforcement officer. Later he

retracted his confession, stating that it had been given as a result of coercion and in the absence of a lawyer.

Mr Fefilov was subsequently convicted in December 2005 and sentenced to 12 years' imprisonment. The domestic courts based their verdict mainly on his confession and dismissed his complaint of ill-treatment. His appeal against the conviction was dismissed in June 2006.

In October 2006 Mr Fefilov was transferred to a penal institution in the Republic of Mordoviya, where there was allegedly a high percentage of HIV-positive detainees, some of whom worked with him at the facility's sewing workshop.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing), Mr Fefilov complains of being exposed to a risk of HIV infection in the penal institution. He also complains that the criminal proceedings against him were unfair because his conviction was based on a confession he had made under duress and without legal representation.

[Mariya Alekhina and Others v. Russia \(no. 38004/12\)](#)

The applicants, Mariya Alekhina, Nadezhda Tolokonnikova, and Yekaterina Samutsevich, are Russian nationals who were born in 1988, 1989, and 1982 respectively and live in Moscow. They are members of the Russian feminist punk band, Pussy Riot, who give impromptu performances of their songs in various public areas dressed in brightly coloured balaclavas and dresses.

The case concerns their conviction and imprisonment for attempting to perform one of their protest songs in a Moscow cathedral in 2012. The courts ruled in particular that their performance had been offensive and banned access to video recordings they had subsequently downloaded onto the Internet because they were "extremist".

The applicants make a number of complaints under Article 3 (prohibition of inhuman or degrading treatment) and Article 6 §§ 1 and 3 (c) and (d) (right to a fair trial / right to legal assistance of own choosing / right to obtain attendance and examination of witnesses) about the conditions of their transportation to and from their court hearings and at trial, alleging that they were not only humiliating and intimidating, but hampered them from consulting their lawyers. In particular, they were transported to and from their court hearings in overcrowded, poorly ventilated prison vans, with temperatures reaching up to 40 degrees C. Furthermore, they were kept in a glass dock in the courtroom surrounded by heavy security with a guard dog and were only able to speak with their lawyers through a small window one metre off the ground. All of that was in full view of the public, including the national and international media.

They also complain under Article 5 § 3 (right to liberty and security / entitlement to release pending trial) that there were no valid reasons to warrant remanding them in custody.

Lastly, under Article 10 (freedom of expression), they complain about their detention and conviction, alleging that those measures were excessive in relation to their conduct. Ms Alekhina and Ms Tolokonnikova also complain about the courts banning access to their videos on the Internet.

[Mazepa and Others v. Russia \(no. 15086/07\)](#)

The case concerns the investigation into the 2006 murder of journalist Anna Politkovskaya.

The applicants are Raisa Aleksandrovna Mazepa, Yelena Stepanova Kudimova, Vera Aleksandrovna Politkovskaya and Ilya Aleksandrovich Politkovskiy. They are Russian nationals who were born in 1929, 1957, 1980 and 1978 respectively and live in Moscow. They are the mother, sister and children of the murdered journalist Anna Politkovskaya.

Ms Politkovskaya was shot and killed in the lift of her Moscow home in October 2006. She was a well-known investigative journalist who covered alleged violations of human rights in Chechnya

committed during the second campaign against rebels in the region. She was also a critic of President Vladimir Putin's politics.

The authorities immediately began an investigation. A Makarov pistol and a silencer were found on the apartment building's stairs. Four men – two brothers, a police officer and an FSB officer – were eventually indicted, tried and acquitted by a jury in February 2009.

After a further investigation, five men, including the two brothers and police officer originally tried, were indicted. They were convicted of the murder in May 2014. The court found that one of the men had accepted an offer for a contract killing from a person who had been unhappy with Ms Politkovskaya's articles. The main organiser of the murder and the actual killer each received life sentences while the three other men were sent to jail for between 12 and 20 years.

Another man, a senior official in the Moscow City Department of the Interior, was convicted separately and in December 2012 he received a sentence of 11 years' imprisonment. He had earlier confessed to helping to organise the killing.

Relying on Article 2 (right to life), the applicants complain that the State did not carry out an effective investigation into Ms Politkovskaya's murder as the authorities failed to identify who had commissioned and paid for the crime.

[Ryabov v. Russia \(no. 2674/07\)](#)

The case concerns an allegation of police brutality.

The applicant, Sergey Ryabov, is a Russian national who was born in 1980. He is currently serving a prison sentence in Bezhetsk, Tver Region (Russia), for, among other things, the murder of a driver who worked for the Ruza police.

Mr Ryabov was arrested on 11 July 2005, a day after the murder, and placed in a temporary detention facility at Ruza district police station. He confessed to the crime in the early hours of the morning and was brought before a judge the next day. He was placed in pre-trial detention until being found guilty in April 2006 and sentenced to 18 years' imprisonment. In convicting him, the courts relied on his confession and the investigating authorities' refusal to open a criminal case into his allegations of police ill-treatment. His appeals against this decision were dismissed and the proceedings were ultimately terminated in February 2008.

A criminal investigation was never begun into Mr Ryabov's allegations that the police had punched, kicked and hit him during his arrest and police custody and at the courthouse following the hearing with the judge. An internal inquiry was carried out, which resulted in two police officers being reprimanded and a medical report being drawn up, finding multiple bruises and abrasions on his body. The authorities concluded however that those injuries could have occurred because he had resisted arrest.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Ryabov alleges that he was ill-treated by the Ruza police in order to make him confess to the murder and that no effective investigation was carried out into his allegations. Also relying on Article 6 § 1 (right to a fair trial), he complains that his conviction was unfair because it was based on statements he had made under duress.

[Shulmin and Others v. Russia \(nos. 15918/13, 51623/15, 53700/15, 18524/16, 33214/17, 34421/17, 35675/17, and 36267/17\)](#)

The applicants, Oleg Shulmin, Aleksandr Krasnov, Stanislav Novikov, Yuriy Sofronov, Denis Alekseyev, Timur Aldergot, Aleksey Kaplin, and Marina Pyshnograd, are Russian nationals who were born in 1961, 1984, 1991, 1984, 1994, 1988, 1988, and 1982 respectively.

Relying on Article 3 (prohibition of inhuman or degrading treatment), all eight applicants complain about being held in metal cages during court hearings on their cases in criminal proceedings brought against them on various dates between 2012 and 2017.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Pylayevy v. Russia (no. 61240/15)

Voroshilov v. Russia (no. 59465/12)

Balan and Others v. Slovakia (nos. 51414/11 and 46098/12) – Revision

Thursday 19 July 2018

[Hovhannisyan v. Armenia](#) (no. 18419/13)

The applicant, Aida Hovhannisyan, is an Armenian national who was born in 1958 and lives in Yerevan. The case concerns her allegation that she was assaulted at work by her superiors during an argument over her appraisal report.

In January 2012 Ms Hovhannisyan, an inspector for the Ministry of Environmental Protection, reported to the police that her head of division and his deputy had grabbed her hands and insulted her when she had refused to return her appraisal report before adding her objections to it. The police investigator ordered a medical examination, which confirmed that she had bruises on her arms. Her superiors and other colleagues were also questioned, but they denied her version of the incident. The investigator therefore refused to institute criminal proceedings.

Ms Hovhannisyan contested this decision by lodging a complaint with the prosecutor. However, no investigation was ever launched because of a lack of evidence. She then complained to the courts, arguing in particular that the prosecutor had ignored the medical examination. The courts, finding the prosecutor's decision lawful, dismissed her complaint in May 2012 and her further appeals.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Ms Hovhannisyan alleges that her superiors deliberately ill-treated and humiliated her and that the authorities failed to carry out an effective investigation into her allegations.

[Aleksandar Sabev v. Bulgaria](#) (no. 43503/08)

The applicant, Aleksandar Sabev, is a Bulgarian national, who was born in 1967 and lives in Sofia (Bulgaria). At the relevant time he was employed by the Bulgarian Military Intelligence Service.

The case concerns judicial proceedings in which the applicant appealed against his dismissal.

In May 2005 a State Commission withdrew Mr Sabev's clearance to access classified information. He was subsequently transferred to the intelligence unit of the army's general staff. In August 2006 his clearance for access to classified information in that new post was likewise withdrawn. In March 2007 the Defence Minister dismissed him on the grounds that he no longer fulfilled the requisite conditions to occupy his post.

In April 2007 Mr Sabev appealed against his dismissal to the Supreme Administrative Court, complaining about the lack of reasoning in the decision. In November 2007 the court dismissed his appeal. Mr Sabev appealed on points of law to the appropriate formation of the Supreme Administrative Court. In March 2008 it upheld the judgment of the lower court. That court found that the Minister had been obliged to dismiss him after his clearance had been withdrawn. It took

the view that a decision withdrawing clearance did not have to contain reasons and could not be challenged before the courts.

Relying on Article 6 § 1 (right to a fair hearing), Mr Sabev complains of a violation of his right to have access to a court with full jurisdiction in a civil dispute to which he was a party.

[S.M. v. Croatia \(no. 60561/14\)](#)

The applicant, Ms S.M., is a Croatian national who was born in 1990 and lives in Z.

The case concerns the applicant's complaint that the authorities failed to respond adequately to her complaint that she had been forced into prostitution and that Croatia lacks a proper legal framework to deal with such issues.

The applicant lodged a criminal complaint in September 2012, alleging that a man had forced her into prostitution over several months in mid-2011. She alleged that the man had driven her to meet clients, had threatened her and punished her if she did not comply with his demands. After an investigation, the man was brought to trial in 2013 and was acquitted of forcing the applicant into prostitution. An appeal by the State Attorney's Office was dismissed in January 2014, while a constitutional complaint by the applicant was declared inadmissible in June of the same year.

Relying in particular on Article 4 (prohibition of slavery / prohibition of forced labour), she complains of the lack of a legal framework to deal with the issues raised by her case and about the official response to her allegations.

[Sarishvili-Bolkvadze v. Georgia \(no. 58240/08\)](#)

The applicant, Gulnara Sarishvili-Bolkvadze, is a Georgian national who was born in 1950 and lives in Batumi (Georgia).

The case concerns her complaint about the authorities' duty to protect her son's life from medical negligence and the adequacy of their response to his death.

The applicant's son, G.B., was injured after falling from a crane in February 2004. He was taken to a hospital intensive care unit with a fractured skull and brain damage and was also later treated for bleeding in the stomach. In March he was transferred to a general ward, however, he suffered bleeding from a duodenal ulcer and was given emergency surgery. He died on 14 March 2004.

The authorities opened a criminal investigation and in June 2004 a panel of experts stated that there had been a medical error in his treatment. The criminal case was closed in August 2004 without result, re-opened in 2006 and then closed again in 2008. The applicant refused all along to allow G.B.'s body to be exhumed for examination and prosecutors said they could not find proof of a causal link between the medical error and the death.

In the meantime, the hospital dismissed the neurosurgeon responsible for G.B.'s treatment and reprimanded two intensive care specialists and a surgeon.

The applicant also launched civil proceedings against the hospital, its medical staff and the Ministry of Labour, Health and Social Affairs of the local region on the grounds of medical negligence for failure to treat the duodenal bleeding properly. The domestic courts agreed with the findings of a panel of experts that there had been a medical error in G.B.'s treatment, and that some of the doctors did not hold adequate medical certificates. The Supreme Court of Georgia in May 2008 ultimately awarded Ms Sarishvili-Bolkvadze about 2,700 euros in respect of pecuniary damage but found that domestic law did not provide for awards in respect of non-pecuniary damage to relatives of someone who had died as a result of medical negligence.

Relying on Article 2 (right to life), Ms Sarishvili-Bolkvadze complains of a failure by the State to fulfil its duty under the European Convention to protect her son's life from medical negligence by the doctors and of failing to adequately respond to his death.

[Storck v. Germany \(no. 486/14\)](#)

The applicant, Waltraud Storck, is a German national who was born in 1958 and lives in Hünfelden-Kirberg.

The case concerns the domestic courts' refusal to reopen civil proceedings against a private clinic following an ECHR judgment in her favour.

By judgment of 16 June 2005, the Court found that Ms Storck's placement and medical treatment in the H. Psychiatric Clinic from 1977 to 1979, against her will and without a court order, had breached the European Convention on Human Rights. The judgment became final on 16 September 2005.

In October 2005 Ms Storck applied to the Bremen Court of Appeal for legal aid in order to bring an action to reopen previous compensation proceedings she had brought against the clinic. However, in February 2006 the Court of Appeal dismissed her request as ill-founded for lack of sufficient prospects of success. Also, the intended action did not raise a difficult or unanswered legal question which made it necessary to grant her legal aid. Ms Storck's objection to this decision was dismissed in April 2006.

During its meeting of 15-17 October 2007 the Committee of Ministers of the Council of Europe decided to close the examination of Ms Storck's case, stating among other things that the domestic courts were expected to fully implement the Convention as well as the European Court's case-law in order to grant her full redress.

In August 2013 the Federal Constitutional Court declined to consider a constitutional complaint by the applicant, giving detailed reasons for its decision.

Following this last decision, in March 2014 Ms Storck asked the Committee of Ministers to reopen the proceedings for the supervision of the enforcement of the Court's 2005 judgment. The Committee of Ministers has not yet given a decision on this request

Relying in particular on Articles 5 § 1 (right to liberty and security), 6 § 1 (right to a fair trial), 14 (prohibition of discrimination) and 46 (binding force and enforcement) and Article 1 of Protocol No. 1, Ms Storck complains about the domestic courts' refusal to reopen the compensation proceedings, and their failure to grant her legal aid, both as concerns the retrial of her case and the proceedings before the Federal Constitutional Court.

[Aielli and Others v. Italy and Arbot and Others v. Italy \(nos. 27166/18 and 27167/18\)](#)

The 10,059 applicants are Italian nationals. The case concerns a reform of the uprating of State pension payments for 2012 and 2013.

In the context of the budget deficit crisis and its consequences, the Italian government decided, on 6 December 2011, to adopt Legislative Decree no. 201 (known as the "save Italy decree"), converted into Law no. 214/2011. Section 24 of that Law, entitled "measures to reduce public debt" provided for the freezing, in 2012 and 2013, of the indexing of old-age pensions which were more than three times the guaranteed minimum pension set by the National Social Security Institute (INPS).

The Constitutional Court, ruling on the conformity of that provision with the Constitution, held in its judgment no. 70 of 10 March 2015 that the legislative intervention had not been proportionate, or reasonable and appropriate, and declared it unconstitutional.

On 21 May 2015 the Government adopted Legislative Decree no. 65/2015, converted into Law no. 109/2015, which amended the provision at issue with retroactive effect. In judgment no. 250 of 25 October 2017, the Constitutional Court took the view that the legislature had carried out a new and balanced assessment of the constitutional principles and interests at stake.

Following the entry into force of Legislative Decree no. 65/2015, the applicants, who were all pensioners receiving more than three times the basic minimum pension, sent a warning to the INPS.

Relying on judgment no. 70/2015 of the Constitutional Court, they sought the restoration of the automatic uprating of their pensions as applied before Legislative Decree no. 201/2011. They then referred the matter to the domestic courts, arguing that Legislative Decree no. 65/2015 was unconstitutional. As the Constitutional Court then found, in judgment no. 250/2017, that the new Legislative Decree raised no question of constitutionality, the applicants decided to withdraw their case before the ordinary courts.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants allege that the relevant provisions of Legislative Decree no. 65/2015 have produced an immediate interference for the years 2012 and 2013, and a permanent one in respect of successive uprating in subsequent years, which was not in the general interest and was disproportionate. Relying on Article 6 § 1 (right of access to a court), they allege that this Legislative Decree is incompatible with Constitutional Court judgment no. 70/2015 and has affected their legal positions retroactively.

Makraduli v. ‘the former Yugoslav Republic of Macedonia’ (nos. 64659/11 and 24133/13)

The applicant, Jani Makraduli, is a Macedonian national who was born in 1965 and lives in Skopje.

The case concerns the applicant’s complaint about being found guilty of defamation.

The first of the two applications concerns events which began in December 2007. Mr Makraduli, at the time an opposition politician for the party SDMS, raised the question at a press conference of whether S.M., a member of the ruling party and head of the Security and Counter Intelligence Agency, had misused police wiretapping powers to make gains on the stock market. S.M. brought private libel proceedings against the applicant, who was found guilty in November 2009 of defamation and fined 1,500 euros. The decision was upheld on appeal while a constitutional appeal by Mr Makraduli was dismissed in February 2011.

The second application concerns a press conference given by Mr Makraduli in September 2007. He alleged the involvement of the Prime Minister or his cousins in the sale of public land for the construction of a hotel. S.M., who was the Prime Minister’s cousin, brought libel proceedings. The court in February 2011 found that it was clear that the applicant had directed his allegations against S.M., even if he had not named him, but the court found that the accusations were false. It found Mr Makraduli guilty of defamation and fined him 1,000 euros, a decision that was upheld on appeal in May 2011. A constitutional complaint by Mr Makraduli was dismissed in September 2012.

Relying on Article 10 (freedom of expression), Mr Makraduli complains about his criminal convictions for defamation.

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Azimov v. Azerbaijan (no. 39234/07)

Bayramov v. Azerbaijan (no. 5598/09)

Ismayilova v. Azerbaijan (no. 27860/07)

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